

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF KINGS

----- X  
YOUSLINE TELSANT,

Plaintiff,

-against-

TAKDIR-2 INC., THE CITY OF NEW YORK and  
NYPD OFFICER DANIEL SANDBERG,

Defendants.

----- X

To the above named defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorney within 20 days after service of this summons (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York  
December 26, 2018

SIVIN & MILLER, LLP

By

  
\_\_\_\_\_  
Edward Sivin  
Attorneys for Plaintiff  
20 Vesey St., Suite 1400  
New York, NY 10007  
(212) 349-0300

To:

TAKDIR-2 INC., c/o New York Secretary of State

THE CITY OF NEW YORK, c/o NYC Corp. Counsel, 100 Church St., New York, NY 10007

NYPD OFFICER DANIEL SANDBERG,  
c/o NYPD 84<sup>th</sup> Pct., 301 Gold Street, Brooklyn, NY 11201

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF KINGS

----- X  
YOUSLINE TELSANT,

Plaintiff,

-against-

**VERIFIED COMPLAINT**

TAKDIR-2 INC., THE CITY OF NEW YORK and  
NYPD OFFICER DANIEL SANDBERG,

Defendants.

----- X

Plaintiff, by her attorneys Sivin & Miller, LLP, complaining of defendants, alleges  
as follows, upon information and belief:

**THE DEFENDANTS**

1. That at all times herein mentioned, defendant Takdir-2 Inc. (hereinafter “Takdir”) was and is a domestic corporation, organized and existing under and by virtue of the laws of the State of New York.
2. That at all times herein mentioned, Takdir owned, operated, managed and maintained a “Subway” restaurant (hereinafter “the restaurant”) located at 391 Jay Street, Brooklyn, NY.
3. That at all times herein mentioned, the restaurant was a place or provider of public accommodation, within the meaning of NYC Administrative Code § 8-107.
4. That at all times herein mentioned, defendant The City of New York (hereinafter “the City”) was and is a municipal corporation, organized and existing under and by virtue of the laws of the State of New York.

5. That at all times herein mentioned, the City operated, controlled, and maintained a police force known as the New York Police Department (hereinafter “the NYPD”).

6. That at all times herein mentioned, defendant NYPD Officer Daniel Sandberg (hereinafter “Sandberg”) was and is employed as an officer with the NYPD.

7. That at all times herein mentioned, Sandberg was acting within the course and scope of his employment as an officer with the NYPD.

8. That at all times herein mentioned, Sandberg was acting under color of state law.

9. That prior to the institution of this action and within ninety (90) days from the dates when the causes of action accrued herein, a notice of claim and intention to sue was duly served upon and filed with defendants City and Sandberg on behalf of plaintiff; that this action was not commenced until the expiration of thirty (30) days after such notice of claim and intention to sue was presented and defendants have neglected and/or refused to make adjustment or payment thereon, and this action is being commenced within one year and ninety days after the causes of action accrued herein.

10. That all of the causes of action pleaded herein fall within one or more of the exceptions set forth in New York’s Civil Practice Law & Rules § 1602 with respect to joint and several liability.

### **THE FACTS**

11. Plaintiff repeats and realleges each and every allegation contained above as though fully set forth at length herein.

12. That on May 16, 2018, plaintiff was lawfully inside the restaurant, awaiting the arrival of her husband so that she and her husband could eat lunch together.

13. That while she was lawfully inside the restaurant, plaintiff was approached by an employee of the restaurant and told that she must leave the restaurant.

14. That in response to that directive, plaintiff explained to the employee that she was waiting for her husband, who was scheduled to arrive shortly, so that she and her husband could eat lunch together in the restaurant.

15. That despite plaintiff's explanation, the employee, and thereafter at least one other employee of the restaurant, including but not limited to a manager of the restaurant, again directed plaintiff to leave the restaurant.

16. That the restaurant employees' actions in directing plaintiff to leave the restaurant were motivated by plaintiff's perceived race, color, national origin, disability and/or citizenship status.

17. That in response to the directives of the restaurants' employees, plaintiff stated that she was refusing to leave the restaurant and that she had a right to remain there to wait for and have lunch with her husband.

18. That following plaintiff's refusal to leave the restaurant, the employees and/or agents of the restaurant called and/or other summoned the NYPD.

19. That in response to the restaurant's call and summons, members of the NYPD, including but not limited to Sandberg, arrived at the restaurant.

20. That when Sandberg and other members of the NYPD arrived at the restaurant, employees of the restaurant made statements to the NYPD about the conduct of plaintiff that were untrue and that the employees knew were untrue.

21. That all of the aforesaid actions of the restaurant employees were undertaken in the course and scope of their employment with the restaurant and with Takdir.

22. That after arriving at the restaurant, Sandberg and the other NYPD officers directed plaintiff to leave the restaurant.

23. That plaintiff refused to leave the restaurant in response to the NYPD officers' directives that she do so.

24. That when plaintiff refused to leave the restaurant, the NYPD officers, including but not limited to Sandberg, used excessive force against plaintiff, including but not limited to grabbing plaintiff, forcibly bringing plaintiff to the ground, and handcuffing plaintiff.

25. That Sandberg and the other NYPD officers then physically dragged and removed plaintiff from the restaurant, and had plaintiff forcibly detained on the pavement outside the restaurant in the rain.

26. That Sandberg and the other NYPD officers then had plaintiff forcibly transported to a hospital, in handcuffs, without a warrant and without probable cause to believe that plaintiff had committed any crime or criminal violation, and without otherwise being justified.

27. That plaintiff remained physically confined and imprisoned in the hospital for several hours until she was released from custody later that day.

28. That on May 16, 2018, Sandberg initiated and/or caused to be initiated a criminal prosecution against plaintiff, in which Sandberg falsely accused plaintiff of criminal conduct in which plaintiff had not engaged and in which Sandberg knew plaintiff had not engaged.

29. That in support of the criminal prosecution, Sandberg also made false statements in an accusatory instrument and to the Office of the District Attorney, including but not limited to that plaintiff hit, kicked, and tried to bite police officers.

30. That the false statements made by Sandberg were material to the prosecution of plaintiff, and constituted evidence that was likely to influence a judge or jury as to plaintiff's guilt.

31. That as a result of the criminal prosecution, plaintiff was required to appear in Criminal Court on several occasions, and was deprived of her liberty and travel.

32. That on or about September 21, 2018, all criminal charges against plaintiff were dismissed and the criminal proceeding terminated favorably to plaintiff.

33. That at all times herein mentioned, Sandberg observed the actions of his fellow officers in using excessive force against and falsely arresting and imprisoning plaintiff.

34. That while Sandberg had a reasonable opportunity to intervene to prevent and/or stop the unlawful and unconstitutional conduct of his fellow officers, he intentionally failed and refused to do so.

35. That as a result of defendants' actions, plaintiff suffered physical and emotional injuries, endured and continues to endure pain and suffering and loss of enjoyment of life, incurred and will continue to incur economic loss, and has been otherwise damaged.

36. That upon information and belief, prior to the events alleged herein, Sandberg and the other involved NYPD officers had engaged in improper and unconstitutional conduct that led to the use of excessive force, false arrest, and malicious prosecution of other individuals, and had otherwise abused their authority against individuals while in the course and scope of their employment with the NYPD.

37. That upon information and belief, prior to the events alleged herein, the City and the NYPD knew that Sandberg and the other involved NYPD officers had engaged in improper and unconstitutional conduct that led to the use of excessive force, false arrest, and

malicious prosecution of other individuals, and had otherwise abused their authority against individuals while in the course and scope of their employment with the NYPD.

38. That upon information and belief, prior to the events alleged herein, the City and the NYPD knew that Sandberg and the other involved NYPD officers were unfit to act as police officers.

39. That despite the City's and the NYPD's prior knowledge of Sandberg's and the other involved NYPD officers' unfitness and propensities, the City and the NYPD knowingly retained Sandberg and the other involved NYPD officers, and failed to take necessary remedial measures, thereby subjecting plaintiff to Sandberg's and the other involved NYPD officers' improper, illegal, and unconstitutional conduct.

40. That the actions of defendants herein were intentional and malicious in nature.

**FIRST CAUSE OF ACTION AGAINST TAKDIR**  
(42 U.S.C. § 1981)

41. Plaintiff repeats and realleges each and every allegation contained above as though fully set forth at length herein.

42. That the aforesaid actions of Takdir and its employees caused plaintiff to be deprived of the same right to make and enforce contracts and to the full and equal benefit of all laws and proceedings for the security of persons and property as is enjoyed by white citizens, and to be subject to like punishment, pains, penalties, taxes, licenses, and exactions of every kind, and to no other, and entitle plaintiff to recover damages from this defendant pursuant to 42 U.S.C. § 1981.

**SECOND CAUSE OF ACTION AGAINST TAKDIR**  
(NYC and NY State Human Rights Laws)

43. Plaintiff repeats and realleges each and every allegation contained above as though fully set forth at length herein.

44. That the aforesaid actions of Takdir in directing plaintiff to leave the restaurant due to plaintiff's perceived race, color, national origin, disability and/or citizenship status were violations of NYC Administrative Code § 8-107 and human rights laws of the State of New York, and entitle plaintiff to recover damages from Takdir.

**THIRD CAUSE OF ACTION AGAINST TAKDIR**  
(False Arrest/False Imprisonment Under NY State Law)

45. Plaintiff repeats and realleges each and every allegation contained above as though fully set forth at length herein.

46. That the aforesaid actions of Takdir and its employees in knowingly making false statements to members of the NYPD about plaintiff's conduct, thereby causing and/or contributing to plaintiff's arrest and imprisonment, render Takdir liable for the false arrest and false imprisonment of plaintiff.

**FOURTH CAUSE OF ACTION AGAINST TAKDIR**  
(Malicious Prosecution)

47. Plaintiff repeats and realleges each and every allegation contained above as though fully set forth at length herein.

48. That the aforesaid actions of Takdir and its employees in knowingly making false statements to members of the NYPD about plaintiff's conduct, thereby causing and/or contributing to plaintiff's prosecution, renders Takdir liable for the malicious prosecution of plaintiff.

**FIFTH CAUSE OF ACTION AGAINST THE CITY and SANDBERG**

(False Arrest/False Imprisonment Under NY State Law)

49. Plaintiff repeats and realleges each and every allegation contained above as though fully set forth at length herein.

50. That the aforesaid actions of Sandberg and the other involved NYPD officers constitute a false arrest and false imprisonment of plaintiff, for which Sandberg and the other involved NYPD officers are liable under New York law and for which the City is vicariously liable under the doctrine of respondeat superior.

**SIXTH CAUSE OF ACTION AGAINST THE CITY and SANDBERG**

(Assault and Battery Under NY State Law)

51. Plaintiff repeats and realleges each and every allegation contained above as though fully set forth at length herein.

52. That the aforesaid actions of Sandberg and the other involved NYPD officers constitute an assault and battery of plaintiff, for which Sandberg and the other involved NYPD officers are liable under New York law and for which the City is vicariously liable under the doctrine of respondeat superior.

**SEVENTH CAUSE OF ACTION AGAINST THE CITY and SANDBERG**

(Malicious Prosecution Under NY State Law)

53. Plaintiff repeats and realleges each and every allegation contained above as though fully set forth at length herein.

54. That the aforesaid actions of Sandberg and the other involved NYPD officers constitute a malicious prosecution of plaintiff, for which Sandberg and the other involved NYPD officers are liable under New York law and for which the City is vicariously liable under the doctrine of respondeat superior.

**EIGHTH CAUSE OF ACTION AGAINST SANDBERG**

(42 U.S.C. § 1983: Fourth, Fifth and Fourteenth Amendment Violations,  
Based on Assault and Battery, False Arrest/Imprisonment and Malicious Prosecution)

55. Plaintiff repeats and realleges each and every allegation contained above as though fully set forth at length herein.

56. That the aforesaid actions by Sandberg in assaulting and battering and improperly causing the detention, arrest, imprisonment, and prosecution of plaintiff, constitute unreasonable and illegal seizures of plaintiff in violation of the proscription against unreasonable searches and seizures contained in the Fourth Amendment to the U.S. Constitution, a denial of liberty of plaintiff without due process of law in violation of the Fifth Amendment to the U.S. Constitution, and an abridgement of the privileges and immunities of plaintiff, a denial of liberty of plaintiff without due process of law, and a denial of equal protection to plaintiff in violation of the Fourteenth Amendment to the U.S. Constitution, and entitle plaintiff to recover damages pursuant to 42 U.S.C. § 1983.

**NINTH CAUSE OF ACTION AGAINST SANDBERG**

(42 U.S.C. § 1983: Fourth, Fifth and Fourteenth Amendment Violations,  
Based on Failure to Intervene)

57. Plaintiff repeats and realleges each and every allegation contained above as though fully set forth at length herein.

58. That the aforesaid actions by Sandberg in failing to intervene to prevent and/or stop the aforesaid improper conduct by his fellow officers constitute unreasonable and illegal seizures of plaintiff in violation of the proscription against unreasonable searches and seizures contained in the Fourth Amendment to the U.S. Constitution, a denial of liberty of plaintiff without due process of law in violation of the Fifth Amendment to the U.S. Constitution, and an abridgement of the privileges and immunities of plaintiff, a denial of liberty of plaintiff

without due process of law, and a denial of equal protection to plaintiff in violation of the Fourteenth Amendment to the U.S. Constitution, and entitle plaintiff to recover damages pursuant to 42 U.S.C. § 1983.

**TENTH CAUSE OF ACTION AGAINST SANDBERG**  
(42 USC § 1983 Claim Based on Denial of Right to Fair Trial)

59. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

60. That the aforesaid actions by Sandberg constitute a denial of plaintiff's right to a fair trial, in violation of plaintiff's rights under the Fifth, Sixth, and Fourteenth Amendments to the United States Constitution, and entitle plaintiff to recover monetary damages under 42 U.S.C. § 1983.

**ELEVENTH CAUSE OF ACTION AGAINST THE CITY**  
(Negligent Hiring, Training, and Retention)

61. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

62. That the aforesaid actions by Sandberg and the other involved NYPD officers and the resulting injuries to plaintiff followed and were the result of the negligence of the City in its hiring, training, and retention of Sandberg and the other involved NYPD officers.

**TWELFTH CAUSE OF ACTION AGAINST THE CITY**  
(Monell Claim: Deliberate Indifference)

63. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

64. That the aforesaid actions by Sandberg and the other involved NYPD officers and the resulting injuries to plaintiff followed and were the result of a deliberate indifference by

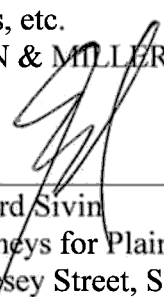
the City and the NYPD to an ongoing pattern of conduct by Sandberg and the other involved NYPD officers involving violations of the constitutional rights of citizens of the State of New York.

65. That by virtue of the foregoing, plaintiff is entitled to recover monetary damages from the City under 42 U.S.C. § 1983, pursuant to *Monell v. Dep't of Social Servs. Of N.Y.C.*, 436 U.S. 658.

WHEREFORE, plaintiff demands judgment against defendants on the foregoing causes of action in the form of compensatory damages in an amount that exceeds the jurisdictional limitations of all lower courts that otherwise would have jurisdiction over this matter, and plaintiff also demands punitive damages against defendants in an amount that exceeds the jurisdictional limitations of all lower courts that otherwise would have jurisdiction over this matter, and plaintiff also demands attorney's fees against all defendants pursuant to 42 USC §§ 1981, 1983 and 1988, and the costs and disbursements of this action.

Dated: New York, New York  
December 26, 2018

Yours, etc.  
SIVIN & MILLER, LLP

By   
\_\_\_\_\_  
Edward Sivin  
Attorneys for Plaintiff  
20 Vesey Street, Suite 1400  
New York, NY 10007  
(212) 349-0300

VERIFICATION

EDWARD SIVIN, an attorney duly admitted to practice law in the State of New York, hereby affirms the following, under penalty of perjury:

That I am the attorney for the plaintiff(s) in the within action.

That I have read the foregoing complaint and know the contents thereof; that the same is true to my own knowledge, except as to the matters therein stated to be upon information and belief; and as to those matters I believe it to be true.

That the reason this verification is made by your affirmant and not by the plaintiff(s) is that plaintiff(s) does not reside in the County where your affirmant maintains his office.

That the grounds for your affirmant's belief as to all matters not stated upon my knowledge are as follows: records, reports, facts and documents contained in plaintiff(s) file maintained by your affirmant's office.

Dated: New York, New York  
December 26, 2018

  
\_\_\_\_\_  
EDWARD SIVIN

\_\_\_\_\_  
Index No.

\_\_\_\_\_  
SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF KINGS  
\_\_\_\_\_

YOUSELINE TELSANT,,

Plaintiff,

-against-

TAKDIR-2, INC., et. al.,

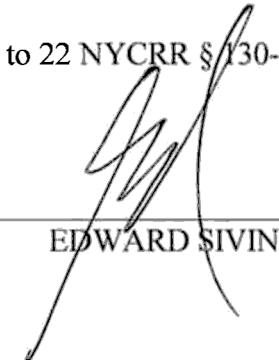
Defendants.

\_\_\_\_\_  
**VERIFIED COMPLAINT**  
\_\_\_\_\_

**SIVIN & MILLER, LLP**  
Attorneys for Plaintiff  
20 Vesey Street, Suite 1400  
New York, NY 10007  
(212) 349-0300  
FAX (212) 406-9462  
\_\_\_\_\_

Certification Pursuant to 22 NYCRR §130-1.1a

Edward Sivin hereby certifies that, pursuant to 22 NYCRR §130-1.1a, the enclosed papers are not frivolous nor frivolously presented.

  
\_\_\_\_\_  
EDWARD SIVIN

Dated: New York, New York  
December 26, 2018